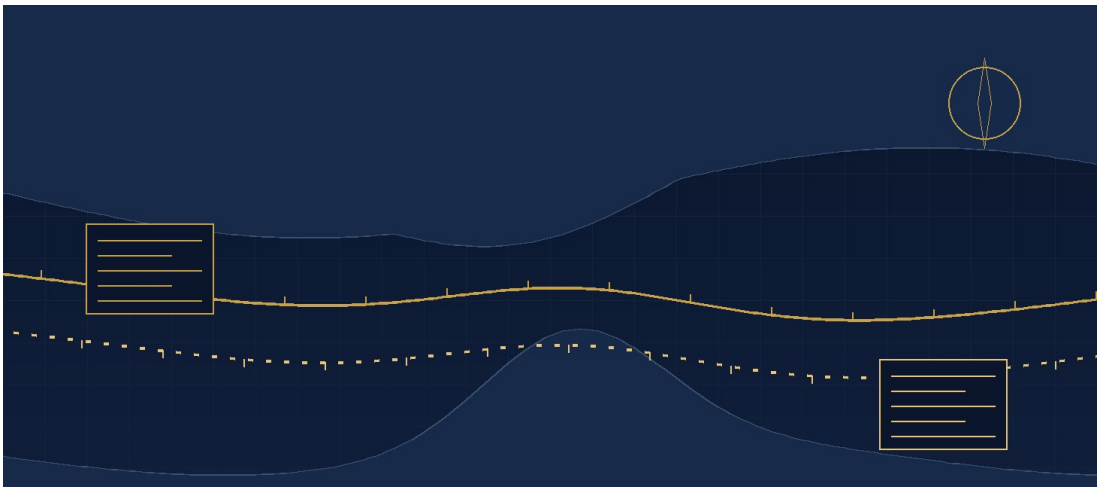
The Dual Title over Hormuz: Covenantal Non-Domination and the Call of Lech Lecha

Aryeh Leib Thorne Toren · Jerusalem · Current as of Thursday 22 October 2026 (11 Cheshvan 5787), the week of Parashat Lech Lecha



Two claims over one waterway

On Friday 16 October 2026 the commander of US Central Command, Adm. Brad Cooper, said in a video statement that "the Strait of Hormuz is controlled by the United States and our regional partners, not Iran." He said about 400 merchant ships had passed through the strait in the previous seven days, that US forces had helped Gulf partners move more than 100 million barrels of crude in that week, and that the blockade of Iranian ports had kept at least $25 billion of Iranian crude off the market.[1] As of Thursday 22 October that is still CENTCOM's most recent weekly traffic figure.

The same day, Iran's army chief, Maj. Gen. Amir Hatami, said the strait would stay closed "until the enemy respects the Iranian nation's rights," and that passage requires coordination with Iranian forces.[2] The IRGC keeps striking ships that use routes it calls "unauthorised." The UK Maritime Trade Operations (UKMTO) weekly overview of 16 October, still its latest, recorded 12 attacks in its reporting week, 10 of them in the strait itself. One ship, the Singapore-flagged container ship GFS Pride, was lost. UKMTO added that most ships that are hit are not reporting to it, so the real number is likely higher.[3] The attacks have not paused since. UKMTO warnings record a tanker struck by an unknown projectile about 30 nautical miles southeast of Al Faw, Iraq, on Tuesday 20 October, and another struck about 11 nautical miles west of Bukha, Oman, early on Wednesday 21 October. That fire was put out, and the crew are reported safe.[4]

Even the traffic count is disputed. For the seven days to 14 October, UKMTO counted 254 transits, about 70% below pre-war levels, and said the US-supplied figures behind most of that count cannot yet be independently verified. Adm. Cooper did not give the dates behind his figure of 400.[5] In remarks reported on 10 October, Secretary of State Marco Rubio said the strait "is open" and that Iran had "lost complete control."[6] Both claims are made in good faith by the people making them. Neither one is the whole picture.

The week since has added claims faster than it has added facts. On Tuesday 20 October the IRGC Navy said its mines had set two tankers ablaze at what it called an illegal crossing south of the strait, and that a third tanker, carrying more than 2 million barrels of crude, exploded after striking a mine. It named none of the ships and did not say when they were hit. A CENTCOM spokesman answered the same day that the mine claims are false, that US forces have cleared the international lanes of mines, and that Iran's weapons in the strait are missiles and drones.[7] The Joint Maritime Information Center had already found "no substantiation" for a matching IRGC claim of 17 October, while keeping the threat level at SEVERE and warning ships to watch for attempted mining.[8] The IRGC also claimed that it shot down a US MQ-9 Reaper drone over the strait on the night of 19 to 20 October, and called it the 54th. It showed no wreckage and gave no location. A US official told American media the claim was untrue (single source, not yet confirmed).[9] Early on Thursday 22 October the IRGC Navy went further. It said it had struck four vessels carrying out ship-to-ship oil transfers in the northern Gulf, that three more had hit mines west of the strait overnight, and that US bases in the region could be next. Again it named no ships, and by midday that day neither UKMTO nor any shipowner had reported a matching incident.[7] A claim repeated is not a fact established, and that discipline applies to both sides.

That is what I mean by a dual title. One side claims a licence to decide who may pass. The other side keeps traffic moving under escort and treats the strait as a commons. Neither has turned its claim into settled order. Normal, insured, unescorted commercial transit has not come back.

The wider picture this month

Four other facts from the past three weeks belong in the frame.

Minzadayi. On 6 October 2026 the Institute for Science and International Security reported "significant renewed activity" at Minzadayi, a compound northeast of Tehran that Israel struck on 3 March 2026. Satellite images from September and October show cleanup, vehicle traffic and earth-moving. On 10 October the Institute added that a probable water tank had been repaired and a small building added.[10] Two cautions belong beside this. The images do not show what work, if any, has resumed inside. And the Institute's account of the site's purpose relies partly on Israeli military claims that have not been independently verified. The IAEA has said it has no credible indication of a coordinated Iranian weapons programme, though it has repeatedly raised concerns about enrichment.[11]

Riyadh, and now Dammam. On Saturday 10 October 2026 a missile struck the domestic terminals of King Khalid International Airport in Riyadh. Saudi authorities reported 12 killed and 309 injured; a thirteenth victim, an Indian national, died the next day. The dead included one US citizen. On Sunday 11 October another projectile hit the same terminals, killing one person and injuring 11. The Houthis claimed the attacks, saying they target Saudi Arabia over its support for Yemen's government forces.[12] AP and CBS called the 10 October strike the deadliest in a Gulf Arab state since the Iran war began.[13] The strikes have spread since. On Wednesday 21 October the US State Department ordered non-emergency staff and their families to leave Saudi Arabia, citing Houthi attacks on civilian airports and other critical infrastructure. Late that evening an attack on King Fahd International Airport in Dammam killed two people and injured eight, Saudi Arabia's civil aviation authority said. On 22 October the Houthis claimed the Dammam attack, along with strikes on the Defense Ministry in Riyadh, Aramco's Yanbu facility and Abha airport; Saudi Arabia had not confirmed those further strikes.[14]

Iran and the Houthis. On 10 September 2026 Reuters reported, citing sources, that Iranian arms and advice helped the Houthis take the Red Sea city of Mokha near Bab al-Mandab. Yemeni government forces said they had retaken Mokha by 6 October.[15] A further report that Iran is giving the Houthis targeting intelligence for the Saudi strikes (Wall Street Journal, as carried by Iran International on 17 October) is (single source, not yet confirmed).[16]

Moscow in Tehran. On Monday 19 October Russian Foreign Minister Sergey Lavrov held talks in Tehran with Foreign Minister Abbas Araghchi and was received by President Masoud Pezeshkian. Lavrov said Russia was ready to help settle the conflict and called for a return to "the pre-crisis situation in the Persian Gulf and the Strait of Hormuz, including measures to restore the freedom of navigation." Araghchi blamed the United States for the tension in the strait and welcomed any initiative for "security from within without the presence of foreign forces."[17] Notice what that last phrase does. It offers the commons a guarantor, and the guarantor is the coastal power whose own Guards boast of setting tankers ablaze. That is a third bid for title, dressed as regional order.

On 14 October two senior Iranian officials told Reuters that Tehran had changed its tactics against shipping about ten days earlier. They said the decision was taken at the highest level, that the goal was to keep oil prices high, and that one aim was to influence the US midterm elections on 3 November.[18] On 20 October Reuters carried a second account in the same vein: three senior Iranian officials and an Iranian insider said Tehran is deliberately drawing out its talks with Washington so as not to hand the US president a political win before the vote.[19] That raises a question, not a conclusion: can a regime really steer an American election by squeezing a strait and slowing a negotiation, or is this a boast aimed at the oil markets and at its own public? Both reports come from Iranian officials speaking anonymously through one news agency, and nobody outside Tehran has confirmed the aim. What is on the record is that President Trump said on 8 October that the United States would not strike Iran again before the 3 November vote, a pledge Reuters described as still standing on 20 October, while the blockade stays in place.[20]

Lech Lecha: leaving a house whose rules others set

This week we read the call that begins Jewish history: "Lech lecha mei'artzecha u'mimoladetecha u'mibeit avicha," go forth from your land, your birthplace and your father's house (Bereishit 12:1). Avram is not sent to build an empire. He is sent out of a familiar order, Ur and Charan, to found a household under a promise. The covenants that follow are reciprocal and costly: the borders of the Brit Bein HaBetarim (chapter 15), the sign in the flesh of Brit Milah (chapter 17), and a mission that is particular in its election and universal in its blessing: "and through you all the families of the earth shall be blessed" (12:3).

Rabbi Jonathan Sacks read lech lecha as the courage not to conform: to leave both the "tradition-directed" and the "other-directed" self and become inner-directed, able to stand before G-d and neighbour without being set by outside forces.[21] That is not a licence for conquest. It is a refusal to stay inside a system whose rules are set by those who do not share your duty to protect your own life and your children's future.

Domination, in the republican sense

Philip Pettit's republican idea of freedom sharpens the point. For Pettit, freedom is not just the absence of interference today. It is non-domination: not living under another's power to interfere arbitrarily, whether or not that power is used this week.[22] A ship that sails only because the IRGC has not yet chosen to fire is not free in Pettit's sense. Neither is an economy whose energy depends on an adversary's goodwill. In "A Republican Law of Peoples," Pettit carries the idea from citizens to peoples: free peoples should not be subject to the arbitrary will of other states.[23]

That is why the dual title matters even on the weeks when the ledger looks good. Escorted volume is real and it is an achievement. It is not yet freedom from domination, because the capacity to interfere remains, and the claim to license passage has not been withdrawn.

What the Torah adds: force under law

The Rambam gives the frame for how a people may use force. In Hilchot Melachim 5:1 he defines a milchemet mitzvah, a commanded war, to include helping Israel against an enemy who has attacked it. An optional war, milchemet reshut, needs the approval of the court of seventy-one (5:2). Even before a commanded war, peace must be offered first (6:1).[24] Josef Stern's study of these chapters shows how carefully the Rambam ties the justification of war to defined purposes rather than to prestige or expansion.[25]

The Rambam also counts the war against Amalek as commanded (5:1). Here the tradition divides, and the disagreement should be stated plainly. The Rambam's Amalek is a specific nation, and many authorities hold that it can no longer be identified by lineage. Rav Yosef Dov Soloveitchik, citing his father, taught in Kol Dodi Dofek (1956) that any people that sets out to destroy the Jewish people takes on the status of Amalek.[26] When I describe strikes on civilian airport terminals and on merchant crews as an Amalek-like pattern, I am using that second reading. It names an ethos, cruelty aimed at the weak and the civilian because they are not soldiers. It is not a halachic ruling about any nation.

Where each school falls short

Each of the usual schools of thought sees part of the picture.

Realism is right that control of the strait depends on mine-clearing, escort and the will to accept risk. It is too ready to treat seafarers' lives and civilian deaths as acceptable costs.

Liberal institutionalism is right that lasting order needs agreed rules, insurers willing to cover the route and mutual guarantees. It underrates what happens when one side makes all order conditional on its own permission, and it can mistake a call for "security from within" for a guarantee when it is a demand for a veto.

Restraint is right to warn against open-ended commitments and their price at home. It underrates the long-term cost of letting an adversary hold a veto over a free people's commerce.

Maximal deterrence is right that the blockade and the financial pressure have cost the IRGC dearly. On 16 October Adm. Cooper said that pressure is now delaying salaries in Iran and among its proxies.[1] But pressure alone does not turn residual disruption into freedom, and over-reach can become a form of domination too.

The Torah corrective is narrower and steadier than any of these. A people is not commanded to police the whole world. It is commanded to refuse the permanent subjection of its own household to someone else's veto. Particular election serves universal blessing by keeping clear boundaries.

Hishtadlut, not triumph

So what follows in practice? Protective coordination that keeps partner oil and goods moving is hishtadlut, our required effort. It is not a victory lap. With attacks continuing, mine and drone claims that no one has substantiated, and the Minzadayi activity unexplained, the structural problem has not been solved by statements or by a good week of volume. Measured deterrence is closer to force under law than either unlimited escalation or accepting an Iranian veto. In practice that means sustained pressure on the regime's revenue, protection for ships that break no law, and clear lines against attacks on shipping and civilian infrastructure.

Three questions stay open. Will the pause in US strikes hold after 3 November? What is happening inside Minzadayi? And can the Red Sea coast and the Saudi interior be shielded from the Houthis' widening strikes?

Honest weights, the Torah's own standard (Devarim 25:15), mean naming all of this without rhetoric. We should not count contested volume as restored order, we should not count residual disruption as Iranian title, and we should not count an unproven claim from either side as a fact. Avraham left his father's house without knowing the road. He knew only that the house he was building would answer to a higher law. That is still the measure.

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